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File No.: EXP202206776

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 13/06/2022, a written complaint was submitted to this Agency by A.A.A. (hereinafter, the complainant), in which a complaint is made against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), regarding the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible breach of the provisions of personal data protection regulations.

The reasons supporting the complaint are as follows:

“1st This camera is located on the façade of a property that is not owned by the person who installed it.

2nd It lacks any type of signage informing that such a camera exists.

3rd The location of this camera covers the entire recording of the public road and the entrance to the homes included in that stretch, as well as vehicles of the owners.

(...)”

A photograph of the location of the video surveillance camera and the affected area is attached.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 14/06/2022, this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The notification, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 20/06/2022 as recorded in the acknowledgment of receipt in the file. As of today, no response has been received to this notification.

THIRD: On 09/08/2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

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FOURTH: On 24/10/2022, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged violations of Articles 5.1.c) and 13 of the GDPR, classified under Article 83.5 of the GDPR.

This decision was notified in accordance with the rules established in the LPACAP via postal notification and was delivered to the respondent on 07/11/2022.

FIFTH: On 16/11/2022, the respondent submitted a written statement, in due time and form, to this Agency in which the following was stated:

“[...]”

FOURTH.- That the security camera is neither my property nor is it located on my façade; it belongs to my father, who asked me to install it on his façade for his own safety and interests (I provide a supporting document).

FIFTH.- That I am aware that the camera is not operational, and it will not be activated until it meets the requirements set by data protection regulations.

[...]”

Along with the statement of allegations, the following documentation is provided, among others:

- Copy of the document, dated 01/01/2019, by which C.C.C. authorizes the respondent to “carry out any management, work, or procedure necessary for the maintenance, repair, or any other action deemed appropriate for the interests of my property.”

SIXTH: On 19/01/2023, the instructing body of the procedure agreed to open a period of evidence, considering the complaint filed by the complainant and its documentation, as well as the allegations to the initiation agreement PS/00430/2022 presented by the respondent and the accompanying documentation.

Furthermore, the instructing body requested the respondent to provide a photograph, invoice, purchase receipt, or any other document that proves the non-operational status of the camera in question, or, alternatively, to provide a signed responsible declaration stating, under their responsibility, that the camera is not operational/has been removed.

SEVENTH: On 03/03/2023, a written statement was received at this Agency from the respondent indicating the removal of the device in question. A return receipt to the selling company is attached.

EIGHTH: On 15/06/2023, the instructing body of the sanctioning procedure formulated a resolution proposal, in which it proposes that the Director of the Spanish Agency for Data Protection order the filing due to the lack of operation.

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of the camera subject to the complaint and, consequently, the informative sign of the video surveillance area is not necessary as there is no data processing in strict terms. This proposed resolution was notified to the complained party in accordance with the rules established in the LPACAP, and was delivered on 22/06/2023, as evidenced by the acknowledgment of receipt in the file. As of today, no allegations have been received from the complained party.

In view of all the actions taken, the Spanish Agency for Data Protection considers the following facts to be proven in this procedure,

PROVEN FACTS

FIRST: The complaint dated 13/06/2022 reveals the installation of a white video surveillance camera on the façade of the property located at ***ADDRESS.1, oriented towards the public road and the entrance to the homes of third parties. Furthermore, it does not have the mandatory informative sign of the video surveillance area. These two points are proven by the photograph provided by the complainant.

SECOND: On 16/11/2022, the complained party cites security reasons concerning their father for the installation of the camera, which is real, but is not operational.

THIRD: On 03/03/2023, the complained party communicates the removal of the device and provides a screenshot of their profile in the Amazon app, which shows that, under the section "My orders," there is a return of a white video surveillance camera. Specifically, it states: "2022. Return completed. Your return has been completed. Your refund has been processed."

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The image is a personal data

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The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

III

Data minimization

Article 5.1.c) of the GDPR states the following:

"1. Personal data shall be:

(...)

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities. However, capturing images of the public road is only permitted to the extent that it is essential for the aforementioned purpose.

In no case shall the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely transiting the area.

IV

Transparency of personal data processing

Article 5 of the GDPR "Principles relating to processing" states that:

"1. Personal data shall be:

a) processed lawfully, fairly, and transparently in relation to the data subject ('lawfulness, fairness, and transparency')."

This principle is developed in Article 12 of the GDPR and, depending on whether the personal data is obtained from the data subject themselves or not, the information that must be provided is listed in Articles 13 or 14 of the GDPR.

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Regarding the processing for the purposes of video surveillance, Article 22.4 of the LOPDGDD states that:

"The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the data controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. An access code or internet address to this information may also be included in the informative device."

V

Claims Made

This Agency has no record that the respondent has submitted a written statement of claims against the proposed resolution.

However, as already indicated in the proposed resolution, on 16/11/2022, a written statement of claims regarding the initiation agreement of the present sanctioning procedure was received from the respondent, in which they acknowledge having installed the camera on the façade of their father's

house at his request, for security reasons.

However, although the device is real, it is not operational.

Following the evidence request made by the instructing body, on 03/03/2023, the respondent communicated the removal of the camera in question and also provided a copy of the return receipt. The camera subject to the complaint, being inoperative, has not captured any images of identified or identifiable individuals, therefore there is no processing of personal data. In this regard, the lack of such processing negates the obligation to inform under Article 13 of the GDPR; it is not necessary to place an informative sign in the video surveillance area.

Consequently, in light of the above, it is concluded that it has not been established at this resolution stage that the facts subject to transfer constitute an administrative infringement in the matter at hand. This Agency wishes to remind that Article 28.7 of the LPACAP states that: "The interested parties shall be responsible for the veracity of the documents they present."

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the ARCHIVING of the present sanctioning procedure against B.B.B., with NIF ***NIF.1, as the commission of the infringements of Articles 5.1.c) and 13 of the GDPR has not been established due to the camera subject to the complaint not being operational.

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SECOND: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency does not have knowledge of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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